

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 05/12/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-04389

CASE NAME: CITIBANK N.A. VS. ANDY LOPEZ

*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT;
FILED BY: CITIBANK N.A.

TENTATIVE RULING:

On 4/16/26, this matter was dismissed, with prejudice, at the request of the Plaintiff.

Thus, this Motion is moot.

Appearance is vacated.

2. 9:00 AM CASE NUMBER: L24-00197

CASE NAME: JPMORGAN CHASE BANK N.A. VS. SHANNON HAGMANN

*HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT
FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant that was listed on the Answer.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$24,252.07, plus costs, less any credits for payments received.

The Defendant made payments of \$13,522.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$10,730.07.

Plaintiff shall prepare and submit a proposed order and judgment.

**3. 9:00 AM CASE NUMBER: L24-02218
CASE NAME: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY VS. CHRISTOFER ACOSTA
*HEARING ON MOTION IN RE: MOTION TO AMEND JUDGMENT AND OF NONAPPEARANCE FILED
BY PLN ON 1/8/26
FILED BY: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY
*TENTATIVE RULING:***

Background

Plaintiff filed a Motion to amend the Judgment, which was entered on 1/13/25, and list the Defendant, Christina Vargas Acosta, as the defendant under Section 5a) of the form of the Judgment.

The Motion was served on the Defendant and is unopposed.

The Judgment, granted 1/13/25, in favor of Plaintiff, inadvertently listed the Defendant as a cross-defendant.

Analysis